

26TRCV00657 26TRCV00657

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ING%2C5%2C08%2F06%2F2026

Source SHA-256: c225bb239df261ba0f7d4b05179ccd58224daef110eef46cb96646f1f09801da

Case Number: 26TRCV00657 Hearing Date: August 6, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

HYPER ICE, INC.

;

Plaintiff,

vs.

STEELE LOGISTICS INC.

, et al.;

Defendants.

Case

No.:

26TRCV00657

Hearing

Date:

August
6, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANTS STEELE LOGISTICS, INC., MICHAEL
FLASKERUD, AND KRISTIN MAIER'S DEMURRER TO COMPLAINT

(2)

DEFENDANTS STEELE LOGISTICS, INC., MICHAEL
FLASKERUD, AND KRISTIN MAIER'S MOTION TO STRIKE CLAIMS FOR PUNITIVE DAMAGES

MOVING PARTY: Defendants, Steele Logistics,
Inc., Michael Flaskerud, and Kristin Maier

RESPONDING PARTY: No opposition.

(1)

Defendants
Steele Logistics, Inc., Michael
Flaskerud, and Kristin Maier's Demurrer to Complaint is OVERRULED pursuant to
Code of Civil Procedure section 472, subdivision (a).

(2)

Defendants
Steele Logistics, Inc., Michael Flaskerud, and Kristin Maier's Motion to Strike
Claims for Punitive Damages is DENIED pursuant to Code of Civil Procedure
section 472, subdivision (a).

The Court considers the moving
papers filed on June 15, 2026. To date,
no opposition brief has been filed.

BACKGROUND

Factual Background

On February 20, 2026, plaintiff Hyper Ice, Inc. ("Plaintiff") filed the Complaint against defendants Steele Logistics, Inc., Michael Flaskerud, Kristin Maier née Flaskerud, (collectively, "Defendants") and DOES 1 through 50. The Complaint included the following causes of action: (1) Negligence; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Breach of Fiduciary Duty; (4) False Promise; (5) Concealment; (6) Intentional Misrepresentation; (7) Negligent Misrepresentation; (8) Unfair Business Practices (Bus. & Prof. Code, §§ 17200-17500, et seq.); (9) Unjust Enrichment; and (10) Conspiracy.

On May 28, 2026, Defendants' counsel and Plaintiff's counsel spoke by phone to discuss the alleged issues in the Complaint. (Declaration of Emanuel K. Caros ("Caros Decl."), ¶ 3.) Subsequently, on June 10, 2026, Defendants' counsel emailed Plaintiff's counsel to discuss the deficiencies identified in the demurrer and motion to strike. (Caros Decl., ¶ 4, Exh. A.)

On July 8, 2026, Plaintiff filed the First Amended Complaint ("FAC") against Defendants and DOES 1 through 50. The FAC includes the following causes of action: (1) Negligence; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3) Breach of Fiduciary Duty; (4) False Promise; (5) Concealment; (6) Intentional Misrepresentation; (7) Negligent Misrepresentation; (8) Unfair Business Practices (Bus. & Prof. Code, §§ 17200-17500, et seq.); and (9) Unjust Enrichment.

LEGAL STANDARDS

Demurrer

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each

evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Motion to Strike

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); Stafford v. Shultz (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b), emphasis added.) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear

on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

DISCUSSION

Defendants demur to the entirety of Plaintiff's Complaint, contending that each cause of action is "improperly pled against individual defendants as employees of a corporation" and is "improperly vague, ambiguous, and uncertain." (Dem., pp. 3:20-21, 5:16.) Furthermore, Defendants seek to strike any allegations relating to punitive damages. (MTS, p. 1:1-21.) However, the Court does not address these matters, as both the demurrer and the motion to strike are deemed moot.

"A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).) "All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days ... before the hearing." (Code Civ. Proc., § 1005, subd. (b).)

"[T]he filing of an amended complaint renders moot a demurrer to the original complaint." (JKC3H8 v. Colton (2013) 221 Cal.App.4th 468, 477, citing Sylmar Air Conditioning v. Pueblo Contracting Services, Inc. (2004) 122 Cal.App.4th 1049, 1054.) "Because there is but one complaint in a civil action [Citation], the filing of an amended complaint moots a motion directed to a prior complaint." (State Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1131.)

Here, on July 8, 2026, Plaintiff filed the First Amended Complaint, which was filed more than two weeks in advance of the deadline for the opposition brief. Accordingly, Defendants' demurrer and motion to strike portions of the initial Complaint are both overruled and denied, respectively, as moot.

ORDERS

1) Defendants

Steele Logistics, Inc., Michael Flaskerud, and Kristin Maier's Demurrer to Complaint is OVERRULED.

2) Defendants

Steele Logistics, Inc., Michael Flaskerud, and Kristin Maier's Motion to Strike Claims for Punitive Damages is DENIED.

3) Defendants

are ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 6, 2026

Tamara
Hall

Judge
of the Superior Court